

Sharnappa S/O Basavanth Sathked Anr vs Laxmi W/O Ramesh Kansoor on 27 September, 2023

- 1 -

NC: 2023:KHC-K:8079

RSA No. 7129 of 2012

IN THE HIGH COURT OF KARNATAKA
KALABURAGI BENCH

DATED THIS THE 27TH DAY OF SEPTEMBER, 2023
BEFORE
THE HON'BLE MRS JUSTICE K S HEMALEKHA

REGULAR SECOND APPEAL NO. 7129 OF 2012 (PAR)

BETWEEN:

1. SHARNAPPA
S/O BASAVANTH SATHKED
AGE: 42 YEARS, OCC: AGRICULTURE
SINCE DECEASED BY HIS LR'S

1.A) SHIVALINGAMMA
W/O SHRNAPPA SATHKED,
AGE: 45 YEARS, OCC: AGRI.,

1.B) REVANSIDDU

Digitally signed
by

LUCYGRACE

Location: HIGH

COURT OF
KARNATAKA

S/O SHRNAPPA SATHKED,

AGE: 30 YEARS, OCC: BUSINESS

1.C) BHIMRAO
S/O SHARNAPPA SATHKED
AGE: 22 YEARS, OCC: PRIVATE SERVICE

ALL R/O: EVANI, TQ: CHITTAPUR
DIST: GULBARGA.

2. SHARNAMMA
W/O DEVENDRAPPA

AGE: 47 YEARS, OCC: HOUSEHOLD,

-2-

NC: 2023:KHC-K:8079

RSA No. 7129 of 2012

R/O H.NO. LIG-27,II PHASE,
ADARSH NAGAR, GULBARGA.

...APPELLANTS

(BY SRI. B D HANGARKI, ADVOCATE)

AND:

LAXMI W/O RAMESH KANSOOR

AGE: 37 YEARS, OCC: HOUSEHOLD,

R/O EVANI,TQ: CHITTAPUR,

DIST: GULBARGA.

...RESPONDENT

(BY SRI. LIYAQAT FAREED USTAD, ADVOCATE)

THIS RSA IS FILED UNDER SECTION 100 OF CPC,

PRAYING TO SET ASIDE THE JUDGMENT AND DECREE PASSED

ON DATED 29.02.2012 IN R.A. NO.71/2011 PASSED BY THE

COURT OF THE SENIOR CIVIL JUDGE, CHITTAPUR AND ALSO

THE JUDGMENT AND DECREE PASSED IN O.S.NO.37/2007

DATED 30.01.2010 PASSED BY THE COURT OF THE CIVIL

JUDGE (JR. DN), CHITTAPUR AND THEREBY DISMISS THE SUIT

OF ATHE PALINTIFF IN THE INTEREST OF JUSTICE AND

EQUITY.

THIS APPEAL, COMING ON FOR FINAL HEARING, THIS

DAY, THE COURT DELIVERED THE FOLLOWING:

-3-

NC: 2023:KHC-K:8079

RSA No. 7129 of 2012

JUDGMENT

The present regular second appeal by defendant Nos.1 and 3 assailing the concurrent findings of the Courts below, whereby, the suit seeking for partition, separate possession and declaration came to be decreed by the Courts below.

2. This Court, while admitting the appeal on 09.10.2012, has framed the following substantial question of law:

"In view of the findings of fact recorded by both the Courts below holding that the plaintiff was not born out of the wedlock between her father and the 2nd defendant (first wife) and that she was born to the second wife, whether the Courts below were justified in allotting 5/16th share in the entire suit properties, treating her as a co-parcener?"

3. The parties herein are referred to as per their ranking before the trial Court for the sake of convenience.

4. The relevant facts necessary for answering the substantial question of law is that one Basawanth @ NC: 2023:KHC-K:8079 Bassappa was the original propositus. It is the case of the plaintiff that she was born to Basawanth @ Bassappa through Bheembai @ Parwati the second wife of Basawanth @ Bassappa and defendant No.2 was the first wife and defendant Nos.1 and 3 are the children born to Basawanth @ Bassappa through his first wife-defendant No.1. It is the case of the plaintiff that the plaintiff being the daughter of Basawanth @ Bassappa is entitled for a share in the suit schedule property.

5. The defendants resisted the suit, inter alia denying that Bheembai is the second wife of Basawanth @ Bassappa and the plaintiff is the daughter of Bheembai through Basawanth @ Bassappa. The defendants denied the relationship between Basawanth @ Bassappa and the said Bheembai. It is the contention of the defendants that the defendants are only the legal heirs of Basawanth @ Bassappa and the plaintiff has no right, title and interest over the suit schedule property.

NC: 2023:KHC-K:8079

6. The trial Court based on the pleadings framed the following:

"ISSUES

1. Whether the plaintiff proves that, she is the daughter of Basawanth @ Bassappa through II wife Smt. Bhimbai?
2. Whether the plaintiff proves that Basawanth @ Bassappa is natural father of defendants and the plaintiff?
3. Whether the plaintiff proves that Basawanth @ Bassappa Sathkhed died on 3-12-96 leaving behind plaintiff and defendants his legal heirs?

4. Whether the plaintiff proves that, the suit properties are ancestral Hindu joint family proeprty?

5. Whether the defendants proves that, the suit is bad for non-joinder of necessary party namely Smt. Sharanamma W/o Deendrappa who is daughter of deceased Baswanta?

6. Whether the plaintiff is entitled to the relief sought for?"

NC: 2023:KHC-K:8079

7. In order to substantiate her claim, plaintiff got herself examined as PW.1 and two witnesses as PWs.2 and 3 and got marked documents at Exs.P-1 to P-8. On the other hand, defendant examined himself as DW.1.

8. The trial Court based on the pleadings, oral and documentary evidence held that:

(i) Plaintiff proved that she is the daughter of Basawanth @ Bassappa through second wife Bheembai.

(ii) Plaintiff proved that Basawanth @ Bassappa is the natural father of defendant Nos.1 and 3 and the plaintiff.

(iii) Plaintiff proved that Basawanth @ Bassappa died leaving behind the plaintiff and defendants as his legal heirs.

(iv) Plaintiff proved that the suit schedule properties are the joint family properties of the plaintiff.

And by the judgment and decree, decreed the suit of the plaintiff awarding 5/16th share to the plaintiff.

NC: 2023:KHC-K:8079

9. Aggrieved by the judgment and decree of the trial Court, defendant Nos.1 and 3 preferred the appeal before the first appellate Court. The first appellate Court, on re-appreciating the entire oral and documentary evidence, concurred with the judgment and decree of the trial Court.

10. Aggrieved by the concurrent findings of the Courts below, the present second appeal by defendant Nos.1 and 3.

11. Sri S.B. Hangarki, learned counsel for the appellants and Sri Liyaqat Fareed Ustad, learned counsel appearing for the respondent have been heard on the substantial question of law framed by this Court.

12. This Court has carefully considered the rival contentions urged by the learned counsel for the parties and perused the material on record.

NC: 2023:KHC-K:8079

13. The Courts below have held that the plaintiff is born to the second wife - Bheembai. The only grievance of the appellants-defendants is that the Courts below having held that the plaintiff is the daughter of Basawanth @ Bassappa through his second wife-Bheembai would not have been entitled for 5/16th share in the suit schedule properties. The Courts below while awarding share in the suit schedule properties though have taken notional partition, however, while dividing the shares between deceased Basawanth @ Bassappa and his children at the first instance included the plaintiff as well. The Apex Court in the case of Revanasiddappa and another vs. Mallikarjun and others¹ has given a deliberate consideration to Section 16 of the Hindu Marriage Act, 1955 and has arrived at the following conclusions at para No.74 which reads as under:

"74. We now formulate our conclusions in the following terms:

(i) In terms of sub-section (1) of Section 16, a child of a marriage which is null and void under 2023 SCC OnLine SC 1087 NC: 2023:KHC-K:8079 Section 11 is statutorily conferred with legitimacy irrespective of whether (i) such a child is born before or after the commencement of Amending Act, 1976; (ii) a decree of nullity is granted in respect of that marriage under the Act and the marriage is held to be void otherwise than on a petition under the enactment;

(ii) In terms of sub-section (2) of Section 16 where a voidable marriage has been annulled by a decree of nullity under Section 12, a child begotten or conceived' before the decree has been made, is deemed to be their legitimate child notwithstanding the decree, if the child would have been legitimate to the parties to the marriage if a decree of dissolution had been passed instead of a decree of nullity;

(iii) While conferring legitimacy in terms of sub-section (1) on a child born from a void marriage and under sub-section (2) to a child born from a voidable marriage which has been annulled, the legislature has stipulated in subsection (3) of Section 16 that such a child will have rights to or in the property of the parents and not in the property of any other person;

(iv) While construing the provisions of Section 3(1)(1) of the HSA 1956 including the proviso, the legitimacy which is conferred by Section 16 of the HMA 1955 on a child born from a void or, as the

- 10 -

NC: 2023:KHC-K:8079 case may be, voidable marriage has to be read into the provisions of the HSA 1956. In other words, a child who is legitimate under sub-section (1) or sub-section (2) of

Section 16 of the HMA I would, for the purposes of Section 3(1)(j) of the HSA 1956, fall within the ambit of the explanation 'related by legitimate kinship' and cannot be regarded as an 'illegitimate child' for the purposes of the proviso;

(v) Section 6 of the HSA 1956 continues to recognize the institution of a joint Hindu family governed by the Mitakshara law and the concepts of a coparcener, the acquisition of an interest as a coparcener by birth and rights in coparcenary property. By the substitution of Section 6, equal rights have been granted to daughters, in the same manner as sons as indicated by sub- section (1) of Section 6;

(vi) Section 6 of the HSA 1956 provides for the devolution of interest in coparcenary property. Prior to the substitution of Section 6 with effect from 9 September 2005 by the Amending Act of 2005, Section 6 stipulated the devolution of interest in a Mitakshara coparcenary property of a male Hindu by survivorship on the surviving members of the coparcenary. The exception to devolution by survivorship was where the deceased had left surviving a female relative specified in Class I of

- 11 -

NC: 2023:KHC-K:8079 the Schedule or a male relative in Class I claiming through a female relative, in which event the interest of the deceased in a Mitakshara coparcenary property would devolve by testamentary or intestate succession and not by survivorship. In terms of sub-section (3) of Section 6 as amended, on a Hindu dying after the commencement of the Amending Act of 2005 his interest in the property of a Joint Hindu family governed by the Mitakshara law will devolve by testamentary or intestate succession, as the case may be, under the enactment and not by survivorship. As a consequence of the substitution of Section 6, the rule of devolution by testamentary or intestate succession of the interest of a deceased Hindu in the property of a Joint Hindu family governed by Mitakshara law has been made the norm;

(vii) Section 8 of the HSA 1956 provides general rules of succession for the devolution of the property of a male Hindu dying intestate. Section 10 provides for the distribution of the property among heirs of Class I of the Schedule. Section 15 stipulates the general rules of succession in the case of female Hindus dying intestate. Section 16 provides for the order of succession and the distribution among heirs of a female Hindu;

- 12 -

NC: 2023:KHC-K:8079

(viii) While providing for the devolution of the interest of a Hindu in the property of a Joint Hindu family governed by Mitakshara law, dying after the commencement of the Amending Act of 2005 by testamentary or intestate succession, Section 6 (3) lays down a legal fiction namely that the coparcenary property shall be deemed to have been divided as if a partition had taken place'. According to the Explanation, the interest of a Hindu Mitakshara coparcener is deemed to be the share in the property that would have been allotted to him if a partition of the property has taken

place immediately before his death irrespective of whether or not he is entitled to claim partition;

(ix) For the purpose of ascertaining the interest of a deceased Hindu Mitakshara coparcener, the law mandates the assumption of a state of affairs immediately prior to the death of the coparcener namely, a partition of the coparcenary property between the deceased and other members of the coparcenary. Once the share of the deceased in property that would have been allotted to him if a partition had taken place immediately before his death is ascertained, his heirs including the children who have been conferred with legitimacy under Section 16 of the HMA 1955, will be entitled to their share in the property which would have been

- 13 -

NC: 2023:KHC-K:8079 allotted to the deceased upon the notional partition, if it had taken place; and

(x) The provisions of the HSA 1956 have to be harmonized with the mandate in Section 16(3) of the HMA 1955 which indicates that a child who is conferred with legitimacy under sub-sections (1) and (2) will not be entitled to rights in or to the property of any person other than the parents. The property of the parent, where the parent had an interest in the property of a Joint Hindu family governed under the Mitakshara law has to be ascertained in terms of the Explanation to sub-section (3), as interpreted above."

14. The reference to the three judge bench was whether a child born to parents whose marriage is null and void and annulled by a decree of nullity is declared to be a legitimate, if the child would have been legitimate, if the marriage had been valid and the "property" of the parent includes the share in the coparcenary property. The Apex Court in Revannasiddappa's case dealt with the complex issue of legitimacy and the property rights of the children born from void or voidable marriages. The Apex Court

- 14 -

NC: 2023:KHC-K:8079 considered the provisions of Section 16 of the Hindu Marriage Act, 1955 and Section 6 of the Hindu Succession Act, 1956, as well as the amendments. The Apex Court emphasized that the child born to their parents is null and void and annulled by a decree of nullity to be declared legitimate if the child would have been legitimate if the marriage had been valid. The Apex Court considered the various decisions where differing interpretation of Section 16 Sub-Clause (3) of the Hindu Marriage Act, 1955, the Apex Court ultimately ruled that the children conferred with the legitimacy under Sections 16 (1) or 16 (2) of the Hindu Marriage Act, 1955 have similar right to legitimate children and can claim a share in the property of their parents and the "property" of the parents includes share in the coparcenary property, and the provision confers all the connotations of legitimacy on the children. The Apex Court held that children cloaked with legitimacy under Section 16 (3) of the Hindu Succession Act, 1956 has same right as legitimate children in partition of the larger coparcenary. Once the father's share in the larger

- 15 -

NC: 2023:KHC-K:8079 coparcenary is determined and separated from the larger coparcenary, however, the Apex Court held that they are not entitled to the property belonging to any other person. The Apex Court has considered Section 6 of the Hindu Succession (Amendment) Act, 2005, which grants a daughter equal coparcenary rights to that of a son in the Mitakshara joint Hindu family, holding that the change aimed to promote gender equality and recognized daughters as coparceners from the birth. The Apex Court held that the property of the deceased who died intestate is distributed among the children-legitimate as well as those conferred legitimacy by the legislature under Sections 16(1) and 16(2) of the Hindu Marriage Act, 1955 and that the explanation mandates an assumption that a partition took place immediately before C2's death, in which C2 gets 1/4th share in the larger coparcenary comprising himself and his three brothers. Within his own branch, C2's widow and the child born from the valid marriage would each have 1/3rd share and C2's 1/3rd share would equally distributed between widow, the child born

- 16 -

NC: 2023:KHC-K:8079 from the marriage which was valid and the child who has the benefit of Section 16 (1). The child born out of her lawful marriage is not entitled to a share in the notional partition itself, but will have share in the father's share along with the surviving widow and other children.

15. In light of the law declared by the Apex Court conferring with legitimacy under Section 16 of the Hindu Marriage Act, 1955, the children will be entitled to their share in the property which would have been allotted to the deceased upon the notional partition, if it had taken place and in light of the said proposition of law laid down by the Apex Court, the plaintiff herein is to be equated with that of the legitimate children and if a notional partition has to be equated, then as on the date of death of Basawanth @ Bassappa, Sharanappa, Sharanamma would get 1/3rd share each among themselves in the suit schedule property and thereafter, in the 1/3rd share of Basawanth @ Bassappa, 1/4th share each to defendant No.2-Thippamma, first wife of Basawanth @ Bassappa,

- 17 -

NC: 2023:KHC-K:8079 defendant No.1-Sharanappa and defendant No.3- Sharanamma and therefore, the plaintiff would be entitled for 1/12th share and the defendants are entitled for 1/3rd plus 1/12th share.

16. In view of the said calculations, the plaintiff is entitled for 1/12th share in the suit schedule property as against 5/16th share declared by the Courts below. Accordingly, the substantial question of law is answered in favour of the appellant holding that the Courts below were not justified in allotting 5/16th share in the entire suit schedule property.

17. For the foregoing reasons, this Court pass the following:

ORDER

(i) The regular second appeal is allowed in part.

- 18 -

NC: 2023:KHC-K:8079

(ii) The judgment and decree of the Courts below stands modified awarding 1/12th share to the plaintiff in the suit schedule property.

Sd/-

JUDGE S*